

Amendment No. 2 to HB1405

Crawford
Signature of Sponsor

AMEND Senate Bill No. 1427

House Bill No. 1405*

by deleting all language after the enacting clause and substituting:

SECTION 1. Chapter 30 of the Private Acts of 1975, as amended by Chapter 39 of the Private Acts of 1989, and any other acts amendatory thereto, are repealed.

SECTION 2. For the purpose of providing an efficient system of roads, highways, and bridges and the building, construction, reconstruction, maintenance, and repair of roads, highways, and bridges in Bedford County, Tennessee, the office of County Road Superintendent is hereby created. The County Road Superintendent shall be deemed to be the chief administrative officer of the highway department, which builds and maintains the roads of the county in accordance with the Tennessee County Uniform Highway Law, as codified in Tennessee Code Annotated, Title 54, Chapter 7.

The County Road Superintendent in office on the effective date of this act shall continue to serve until the expiration of his term. At the August election in 2028, and every four (4) years thereafter, the County Road Superintendent shall be elected by a majority of the qualified voters of Bedford County. The superintendent shall receive a salary as provided under general law.

The superintendent shall be a person of skill and experience in highway or bridge construction work, having not less than five (5) years' full-time experience and employment while engaged in such work, and shall be a person of good moral character. Any candidate for the office of superintendent shall be qualified as provided under general law.

SECTION 3. If any provision of this act or the application thereof to any person or circumstance is held invalid, such invalidity shall not affect other provisions or applications of the

act which can be given effect without the invalid provision or application, and to that end, the provisions of this act are declared to be severable.

SECTION 4. Nothing in this act shall be construed to remove any incumbent from office or abridge the term of any incumbent prior to the end of the term for which such elected official was selected, as prescribed in Article XI, Section 9 of the Constitution of the State of Tennessee. The Bedford County Road Board and the members thereof shall continue to operate and perform their duties and functions until the expiration of the members' current terms, at which time the Board will cease to exist.

SECTION 5. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of Bedford County. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 6. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 5.